



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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FILE COPY

Office of the Secretary to the Sangguniang Bayan

1st Endorsement
July 2, 2025

SB00-0762-2025 - 181

LOCAL GOVERNMENT UNIT
Prieto Diaz, Sorsogon

RELEASED

BY: PINKY E. DESTURA

DATE: 7-2-25 TIME: 3:32 pm

Respectfully transmitted to the Honorable Sangguniang Panlalawigan of Sorsogon through **Hon. KRUNIMAR ANTONIO ESCUDERO II**, Vice Governor, the herein attached Ordinance No. 2025-06 entitled: **"AN ORDINANCE ESTABLISHING AN OCCUPATIONAL SAFETY AND HEALTH PROGRAM (OSHP) FOR EMPLOYEE PROTECTION AND WORKPLACE SAFETY IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for its information, review and appropriate action.


BERNADETTE R. ESPEÑA – YAO
Secretary to the Sangguniang Bayan

Cc:

- Hon. Romeo D. Domasian
Municipal Mayor
- Mr. Christian Lloyd Golena
MHRMO
- Mr. Rafael Ryan Bayoca
MDRMMO
- Dr. Jenifer Bernaldez
MHO
- Ms. Linda Lim
MBO
- Mr. Edwin Detecio, President, Prieto Diaz Employees' Union

REMANDED





Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JUNE 16, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA
Hon. Jo Madel D. Domalaon
Hon. Bienvenido D. Ayo, Jr.
Hon. Luis Lee E. Espeña, Jr.
Hon. Alice D. Emano
Hon. Juan D. Ebid
Hon. Albert D. Destura
Hon. Joseph H. Yap, Jr.
Hon. Antonio J. Emano, Jr.

Municipal Vice Mayor/Presiding Officer
S. B. Member
S. B. Member
S. B. Member
S. B. Member
S. B. Member
S. B. Member
S. B. Member
LnB Pres./S. B. Member

ABSENT:

Hon. Rene Joseph D. Domasian
Hon. Rodolfo E. Diolata

SKMF Pres./S. B. Member
Deceased (November 7, 1966 - May 4, 2025)

ORDINANCE NO. 2025-06

Remanded as per
SP Res No. 329-2025

Introduced by Hon. Alice Emano

AN ORDINANCE ESTABLISHING AN OCCUPATIONAL SAFETY AND HEALTH PROGRAM (OSHP) FOR EMPLOYEE PROTECTION AND WORKPLACE SAFETY IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

Be it enacted by the Sangguniang Bayan in session assembled;

Section 1. Purpose

The purpose of this ordinance is to establish an Occupational Safety and Health Program (OSHP) within the local government unit of Prieto Diaz to promote a safe and healthy work environment for all employees and personnel and ensure compliance with applicable safety regulations.

Section 2. Scope

This ordinance applies to all municipal employees, elected officials and job order personnel within the facilities and operations of the local government unit of Prieto Diaz.

Section 3. Definition of Terms

For the purposes of this ordinance, the following definitions shall apply:

1. Occupational Safety and Health Program (OSHP) - A structured framework designed to ensure workplace safety and health, including policies, procedures, and training aimed at preventing hazards.

2. Hazard - any condition, practice, or substance that poses a risk of injury or illness to employees and/or personnel

Section 4. Program Components

The OSHP shall include the following components:

- a. Hazard Identification and Assessment: Regularly identify and assess workplace hazards
- b. Employee Training: Provide ongoing training on safety practices and emergency procedures
- c. Incident Reporting: Establish protocols for reporting and investigating workplace incidents
- d. Safety Inspections: Conduct regular safety audits and inspections
- e. Emergency Preparedness: Develop and implement emergency response plans

Section 5: Council Committee on Occupational Safety and Health

A Council Committee on Occupational Safety and Health (CCOSH) shall be established consisting of:

1. Municipal Mayor as Chairman
2. Municipal Vice Mayor
3. Municipal Human Resource Management Officer (MHRMO)
4. Representative, MDRRMO
5. Representative, Prieto Diaz Employees' Union
6. Representative, MHO
7. Sangguniang Bayan Committee Chairman on Health and Sanitation
8. Sangguniang Bayan Committee Chairman on Labor and Employment
9. representative from DOLE, DOH and CSC



The Council committee shall meet quarterly to review the OSHP, discuss safety concerns, assess the effectiveness of the program and recommend necessary adjustments.

Section 6. Responsibilities

a. Municipal Management Responsibilities

1. Ensure compliance with all applicable local safety regulations
2. Provide necessary resources for employee training and safety equipment
3. Maintain records of safety incidents and program evaluations



b. Employee Responsibilities

1. Participate in safety training and adhere to safety protocols
2. Report unsafe conditions or practices to supervisors
3. Cooperate with safety inspections and investigations



Section 7. Funding

The local government unit of Prieto Diaz shall allocate the amount of two hundred thousand pesos (P 200,000.00) annually for the OSHP, including, but not limited for training, safety equipment, and program implementation.

Section 8. Enforcement

The Municipal Human Resource Management Officer (MHRMO), duly designated by the Municipal Mayor as Safety Officer, shall have the duty and authority to enforce the said ordinance.

Section 9. Separability Clause

If any provision of this ordinance is found to be invalid or unenforceable, the remaining provisions shall continue to be in effect.

Section 10: Effectivity

This ordinance shall take upon the completion of the posting requirement as provided for in the Local Government Code of 1991.

Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Krunimar Antonio D. Escudero II, MDMG; copy furnished Hon. Romeo D. Domasian, Municipal Mayor; Mr. Christian Lloyd Golena, MHRMO; Mr. Rafael Ryan Bayoca, MDRMMO; Dr. Jenifer Bernaldez, MHO; Ms. Linda Lim, MBO; Mr. Edwin Detecio, President, Prieto Diaz Employees' Union and all concerned for their information and appropriate action.

DATE ENACTED: JUNE 16, 2025

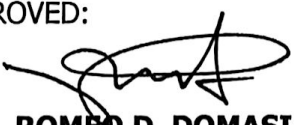
I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

APPROVED:


Hon. ROMEO D. DOMASIAN, PhD
Municipal Mayor
Date signed 07/01/2025



Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

*SP Building, Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City*

August 12, 2025

TRANSMITTAL NO. 407 -2025

TRANSMITTAL FOR: THE HONORABLE SANGGUNIANG BAYAN

Thru: Ms. BERNADETTE E. YAO

Secretary to the Sangguniang Bayan

LGU – Prieto Diaz, Sorsogon

Respectfully transmitting the herein corrected copy subject matter approved by the 12th Provincial Board on July 28, 2025 (5th Regular Session) for information and reference:

RESOLUTION NO. 329-2025

RESOLUTION REMANDING PRIETO DIAZ ORDINANCE NO. 2025-06, ENTITLED: "AN ORDINANCE ESTABLISHING AN OCCUPATIONAL SAFETY AND HEALTH PROGRAM (OSHP) FOR EMPLOYEE PROTECTION AND WORKPLACE SAFETY IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON," TO THE SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON.

Prepared by:

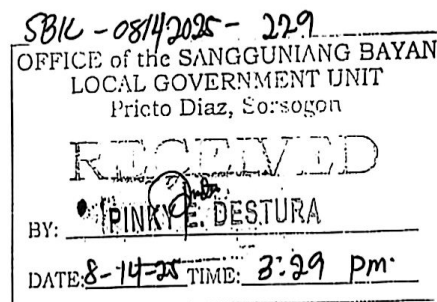
Rhea T. Diesta
RHEA T. DIESTA

Local Legislative Staff Officer III

Noted by:

Atty. Rodolfo C. Dealca, Jr.
ATTY. RODOLFO C. DEALCA, JR.

Secretary to the Sangguniang Panlalawigan





Republic of the Philippines
PROVINCE OF SORSOGON
Sorsogon City



SANGGUNIANG PANLALAWIGAN

*SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700*

EXCERPT FROM THE JOURNAL OF THE 5TH REGULAR SESSION OF THE 12TH PROVINCIAL BOARD ON JULY 28, 2025 AT THE SP SESSION HALL, SANGGUNIANG PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

PRESENT:

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

1ST DISTRICT

Hon. Maria "Nini" O. Ravanilla
Hon. Edmundo A. Atutubo
Hon. Rommel John C. Mella
Hon. Luis C. Leosala, Jr.
Hon. Fernando David H. Duran III

2ND DISTRICT

Hon. Ramil M. Robles
Hon. Benito L. Doma
Hon. Roland R. Añonuevo
Hon. Eduardo E. Ong, Jr.
Hon. Christian D. Lim

EX-OFFICIO

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay
Hon. Karl Marx H. Lozada – Provincial President, Sangguniang Kabataan Federation

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RESOLUTION NO. 329-2025

RESOLUTION REMANDING PRIETO DIAZ ORDINANCE NO. 2025-06, ENTITLED: "AN ORDINANCE ESTABLISHING AN OCCUPATIONAL SAFETY AND HEALTH PROGRAM (OSHP) FOR EMPLOYEE PROTECTION AND WORKPLACE SAFETY IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON," TO THE SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON.

WHEREAS, submitted to the Sangguniang Panlalawigan of Sorsogon was Municipal Ordinance No. 2025-06 of the Municipality of Prieto Diaz, Sorsogon for review and appropriate action;

WHEREAS, the ordinance aims to establish an Occupational Safety and Health Program (OSHP) within the local government unit of Prieto Diaz to promote a safe and healthy work environment for all employees and personnel and ensure compliance with applicable safety regulations;

WHEREAS, the establishment of an Occupational Safety and Health (OSH) Standards for the public sector is authorized under CSC-DOH-DOLE Joint Memorandum Circular No. 1, Series of 2020;

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WHEREAS, the following are the recommendations and observations of the Board for consideration of the Sangguniang Bayan, to wit:

A. Although subject ordinance defined OSHP, it did not contain any specific details as to what kind of programs it will be implemented. Additionally, the program components mentioned in Section 4 of the subject ordinance are considered to be activities and not programs. Subject ordinance must contain specific OSH programs as prescribed under Section V (3) (a) of CSC-DOH-DOLE Joint Memorandum Circular No. 1, Series of 2020, as follows:

(a) Minimum OSH Programs such as, but not limited to the following shall be established:

- a. 1 Occupational Accident and Illness Prevention Program*
- a. 2 Medical Services Assistance and Rehabilitation Program*
- a. 3 Occupational Accident and Illness Surveillance Program*
- a. 4 Information and Education Campaign Program*

B. The Council Committee on Occupational Safety and Health under Section 5 of the subject ordinance is inconsistent with the composition for Safety and Health Committee prescribed under Section VII (I) of CSC-DOH-DOLE Joint Memorandum Circular No. 1, Series of 2020. In the ordinance, it was not specifically provided that there will be two (2) representatives from the accredited employees' association. Also, the secretary, an occupational safety and health officer, was not included in Section 5. Membership in the Council Committee on Occupational Safety and Health under Section 5 of the subject ordinance must follow the prescribed guidelines set forth in the aforementioned joint issuance, as follows:

I. Safety and Health Committee Composition

All government agencies shall constitute their respective Safety and Health Committees (SHC) within six (6) months from the effectivity of this policy while they may reorganize as deemed fit.

The composition of the Safety and Health Committee is as follows:

Chairperson - The Head of the agency or his/her authorized Representative who holds an executive/managerial rank/ position

Members - The highest-ranking officer/executive in charge of Human Resource

- *Two (2) representatives from the accredited employees' association (one 1st Level and one 2nd Level employee)*

In case there is no accredited or registered employee organization, the employees shall elect one representative each from the 1st and 2nd level positions

- *The agency physician, or in the absence thereof, any employee who is a graduate of a medical-related course*
- *Representative from the Local Risk Reduction and Management Council / Risk Reduction Management Officer or its equivalent*

Secretary - Occupational Safety & Health Officer

The Safety and Health Committee shall be established at the national, local and regional offices, if applicable.

- C. There is no specific section in the subject ordinance identifying the duties and responsibilities of the Council Committee on Occupational Safety and Health and it must be added in the subject ordinance as outlined in CSC-DOH-DOLE Joint Memorandum Circular No. 1, Series of 2020, as follows:

Duties and Functions of the Safety and Health Committee

The Safety and Health Committee is the policy making body on matters pertaining to safety and health.

The Committee is tasked to:

- (1) Develop OSH policy and standards internal to the agency which should be in accordance with the herein rule;*
- (2) Plan and develop health related trainings/seminars for the furtherance of promotion and accident prevention programs in the workplace;*
- (3) Initiate and implement improvement of working conditions relative to a safe and healthy working environment;*
- (4) Ensure the health promotion and accident prevention efforts of the agency in compliance with the government safety programs to maintain healthy work habits and safety practices in the workplace;*
- (5) Conduct periodic safety meetings;*
- (6) Submit reports on its meetings and other activities to the head of the agency;*
- (7) Review reports of inspection, accident investigations and implementation of programs;*
- (8) Provide the necessary support to government inspection authorities in the proper conduct of the said activities;*
- (9) Initiate safety trainings on OSH for the agency by coordinating with appropriate training institutions;*
- (10) Develop and maintain contingency plans and provide trainings/seminars in handling disaster situations; and*
- (11) Submit to the head of the agency an Annual Work and Financial Plan and budget needed to support the OSH programs.*

- D. Section 6 of the subject ordinance must specifically mention who composes the municipal management and who are the specific employees covered by the ordinance. Likewise, a list of prohibited acts and its corresponding penalties in case of violations of any of the provisions of the subject ordinance must be added



in concurrence with the Administrative Justice Mechanism set forth under CSC-DOH-DOLE Joint Memorandum Circular No. 1, Series of 2020.

WHEREAS, the Board deems it appropriate to remand the ordinance to its LGU of origin, inviting its attention to the aforementioned recommendations for the effective and efficient implementation of the said ordinance;

NOW, THEREFORE, on motion of Hon. Ramon B. Escudero, unanimously seconded, the Board **RESOLVED**, as it is hereby **DONE**, to **REMAND PRIETO DIAZ ORDINANCE NO. 2025-06, ENTITLED: "AN ORDINANCE ESTABLISHING AN OCCUPATIONAL SAFETY AND HEALTH PROGRAM (OSHP) FOR EMPLOYEE PROTECTION AND WORKPLACE SAFETY IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON," TO THE SANGGUNIAN BAYAN OF PRIETO DIAZ, SORSOGON.**

LET COPIES of this resolution be furnished Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information and guidance.

APPROVED UNANIMOUSLY.

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I HEREBY CERTIFY to the correctness of the foregoing.


ATTY. RODOLFO C. DEALCA, JR.
Secretary to the Sangguniang Panlalawigan

ATTESTED:


HON. KRUNIMAR ANTONIO D. ESCUDERO II, MDMG
Vice Governor/Presiding Officer 